the claimants to cut down a large number of ornamental red cedar trees because they produced cedar rust fatal to apple trees cultivated nearby. Although the statute provided for recovery of any expense incurred in removing the cedars, and permitted claimants to use the felled trees, it did not provide compensation for the value of the standing trees or for the resulting decrease in market value of the properties as a whole. A unanimous Court held that this latter omission did not render the statute invalid. The Court held that the State might properly make "a choice between the preservation of one class of property and that of the other" and since the apple industry was important in the State involved, concluded that the State had not exceeded "its constitutional powers by deciding upon the destruction of one class of property [without compensation] in order to save another which, in the judgment of the legislature, is of greater value to the public." *Id.*, at 279.

Again, *Hadacheck* v. *Sebastian,* 239 U. S. 394 (1915), upheld a law prohibiting the claimant from continuing his otherwise lawful business of operating a brickyard in a particular physical community on the ground that the legislature had reasonably concluded that the presence of the brickyard was inconsistent with neighboring uses. See also *United States* v. *Central Eureka Mining Co., supra* (Government order closing gold mines so that skilled miners would be available for other mining work held not a taking): *Atchison, T. & S. F. R. Co.* v. *Public Utilities Comm'n,* 346 U. S. 346 (1953) (railroad may be required to share cost of constructing railroad grade improvement); *Walls* v. *Midland Carbon Co.,* 254 U. S. 300 (1920) (law prohibiting manufacture of carbon black upheld); *Reinman* v. *Little Rock,* 237 U. S. 171 (1915) (law prohibiting livery stable upheld); *Mugler* v. *Kansas,* 123 U. S. 623 (1887) (law prohibiting liquor business upheld).

Goldblatt v. *Hempstead, supra,* is a recent example. There, a 1958 city safety ordinance banned any excavations below